

8. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

9. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

10. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
*HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL
FILED BY:
TENTATIVE RULING:

The Motion for Substituted Service by email was resolved by ex parte motion.

11. 9:00 AM CASE NUMBER: C26-00882
CASE NAME: RIKKI NEAL VS. LUCKY SUPERMARKETS, AN UNKNOWN ENTITY
*HEARING ON MOTION IN RE: AN ORDER NUNC PROTUNC CORRECTING AN EFILING ERROR OF THE FILING DATE OF THE SUMMONS AND COMPLAINT
FILED BY: NEAL, RIKKI
TENTATIVE RULING:

Plaintiff Rikki Neal has filed a Motion for an Order Nunc Pro Tunc Correcting an E-Filing Error of the Filing Date of the Summons and Complaint. Defendant Food Maxx has not yet been served, and the Defendants SaveMart and Lucky Supermarkets have been served but have not filed responsive pleadings. The Motion is therefore unopposed.

Waiting until the last minute, Neal attempted to file his initiating documents on the last day before the close of the statute of limitations, March 12, 2026. He has filed declarations that his attorney send the documents to CalWest to efile on March 12, 2026. CalWest declares that "it submitted them electronically to the Court for filing on March 12, 2026." The document attached as proof does not

prove this – it merely shows the request.

The Complaint is stamped at the top “Electronically Filed Superior Court of CA County of Contra Costa 3/13/2026 11:03 AM By: A. Adams, Deputy.” At the bottom, it is stamped “Processed by Court on 3/19/2026 11:22 AM.” This indicates the document was actually received March 13 at 11:03 a.m. The processing occurred on March 19. Consistent with the law and Court policy, had the document been received on March 12, it would have been deemed filed as of March 12, regardless of when it was processed. Code Civ. P § 1010.6(e)(3); California Rule of Court § 2.252.

The Court takes judicial notice of the envelope from the clerk’s office and it confirms that the document was *not* submitted on March 12, 2026.

Envelope

Submit Date
03/13/2026 11:03 AM PDT
Filed By
Garo Mardigian
Firm Address
730 Salem St.
Glendale, California 91203

Docket Date
03/13/2026 11:03 AM PDT
Filing Source
Calwest
Firm Phone
2133539100

Filing Attorney
DANIEL MOOSSAI
Firm Name
Cal West Attorney Services Inc.
Filer Email
efileresult@calwest.info

The Motion is therefore **denied**.

12. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

***HEARING ON MOTION IN RE: DISMISS THE 3RD AMENDED COMPLAINT**

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's Motion to Dismiss Plaintiff’s Third Amended Complaint under Code of Civil Procedure sections 583.210 and 583.250(b) is **granted**. Defendant shall prepare and serve the order and notice of entry of order.

Background

In or about early 2019, Plaintiff Margarie David and Defendant Andre Scott agreed to a partnership to purchase and improve a property at 9 La Noria Way, Orinda for resale. (Third Amended Complaint filed on November 26, 2025 (3AC ¶ 6.) Plaintiff was to take title in her name, provide the down payment of \$148,300 along with closing costs. (3AC ¶¶ 6, 7, 8.) Scott, who served as the real estate agent for the buyer and seller in the transaction, agreed to secure the purchase money loan and oversee improvements to the property. (3AC ¶ 6, 7.) The purchase price was \$1.5 million. (3AC ¶ 8.) Escrow closed on April 4, 2019, and Plaintiff subsequently advanced \$60,175 for improvements. (3AC ¶¶ 9, 10.)

The actual purchaser of the property was Eurisko LLC, a limited liability company formed by Scott. (3AC ¶ 9.) Plaintiff's signature was forged on a Declaration of Non-Ownership required by Defendant Chicago Title Company. (3AC ¶ 11(D).) The forged declaration falsely represented that Plaintiff was not the purchaser and would not take title to the property so that Scott could conceal from Plaintiff